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IDEA's Double Bind

What Can We Glean from Federal Policy Interpretations?

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Legal-Historical Context

Disproportionality in the Individuals with Disabilities Education Act (IDEA):

1997	2004	2016	2018/19
• States required to define "significant disproportionality" (i.e., over-representation) and identify districts accordingly	• Sig Dispro→15% federal $ shifted to comprehensive early intervening (CEIS) • Review policies, procedures, practice	• Equity in IDEA; Standard approach + state definition of thresholds • Identification of "root causes"	• DeVos defers new regulation • Judge stays deferral • DoJ appeals • To be continued…






Sullivan, A. L., & Osher, D. (2019). IDEA's double bind: A synthesis of disproportionality policy interpretations. *Exceptional Children, 85*, 395-412. doi:10.1177/0014402918818047
https://sites.ed.gov/idea/idea-files/significant-disproportionality-equity-in-idea-essential-questions-and-answers-and-a-model-state-timeline/

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Disproportionality Reform?

- Little improvement in state patterns
- Intentional avoidance of sanction and change/improvement
- 'loose' coupling of policy, goals, and potential for change



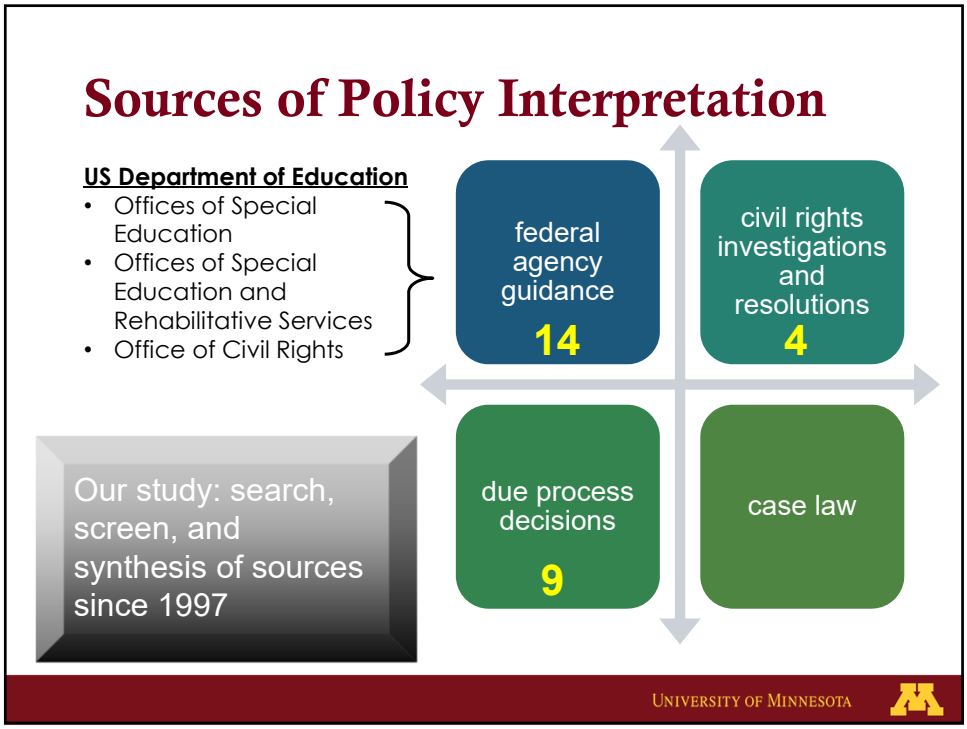
(Albrecht et al., 2011; Kramarczuk Voulgarides et al., 2014, p. 249; U.S. Government Accountability Office, 2013)

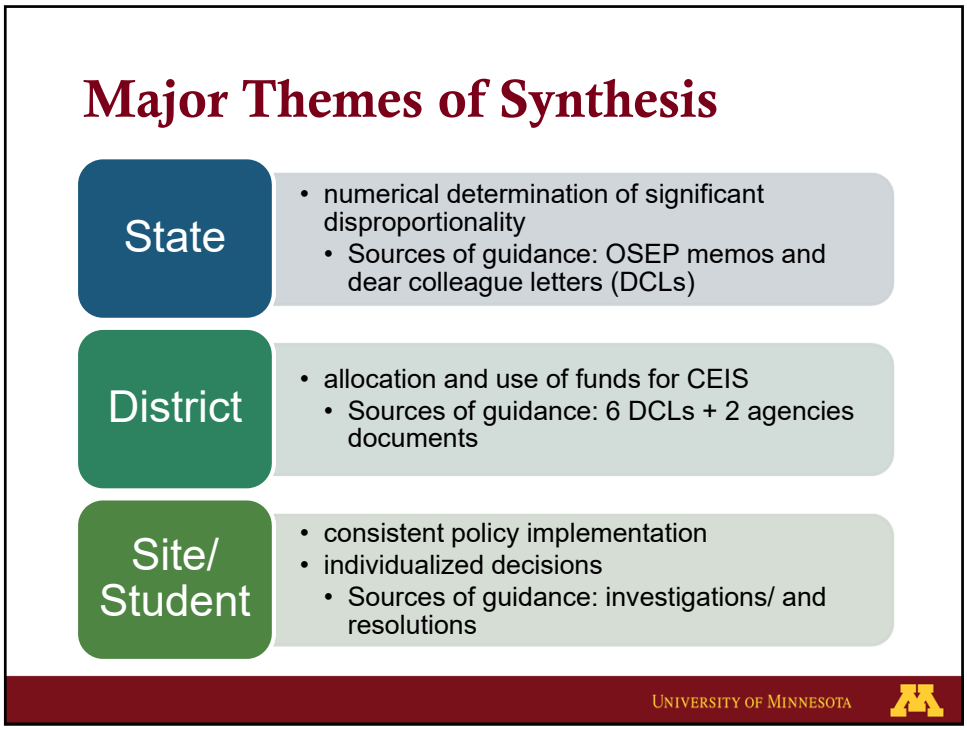
Our Premise

- Disproportionality is multi-determined.
- Disproportionality is problematic.
- Policy is an important contributor.
- IDEA has multiple ambiguities that make important the interpretations thereof.
- Multiple policy actors interpret and apply federal law with ramifications across levels of educational systems.

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How can states determine disproportionality under IDEA?

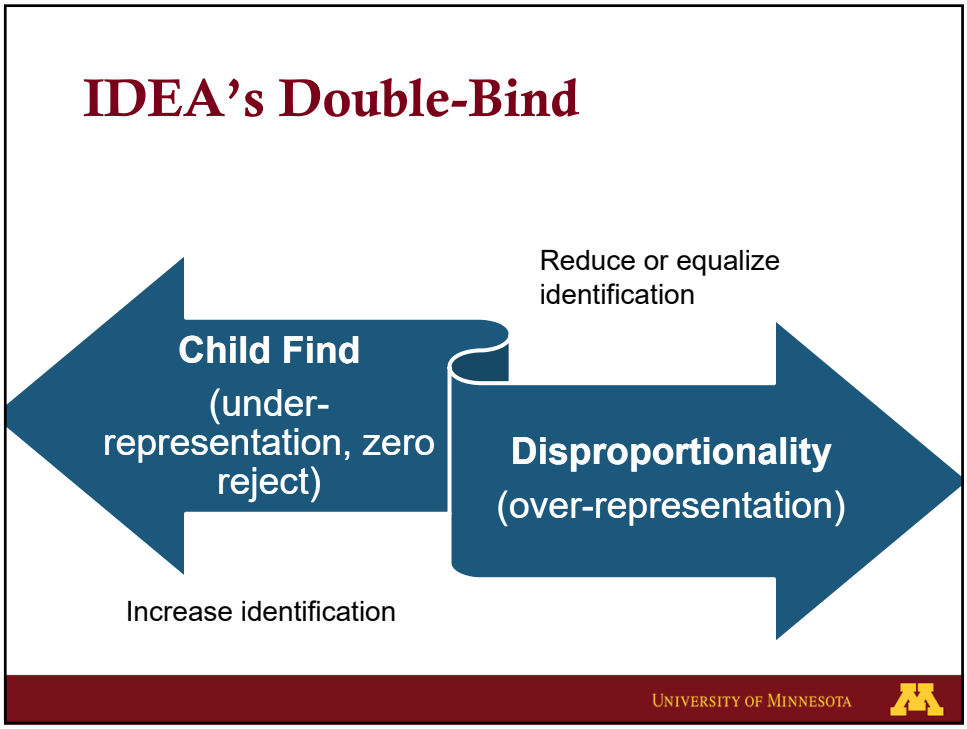
- OSEP: use *only* numerical data
  - Context is irrelevant
    - Cannot consider qualitative data or appropriateness of identification
  - Calculations should include all students in the school systems regardless of when/where identified
    - Except students unilaterally placed by courts or medical providers
  - **Only overrepresentation** can be considered

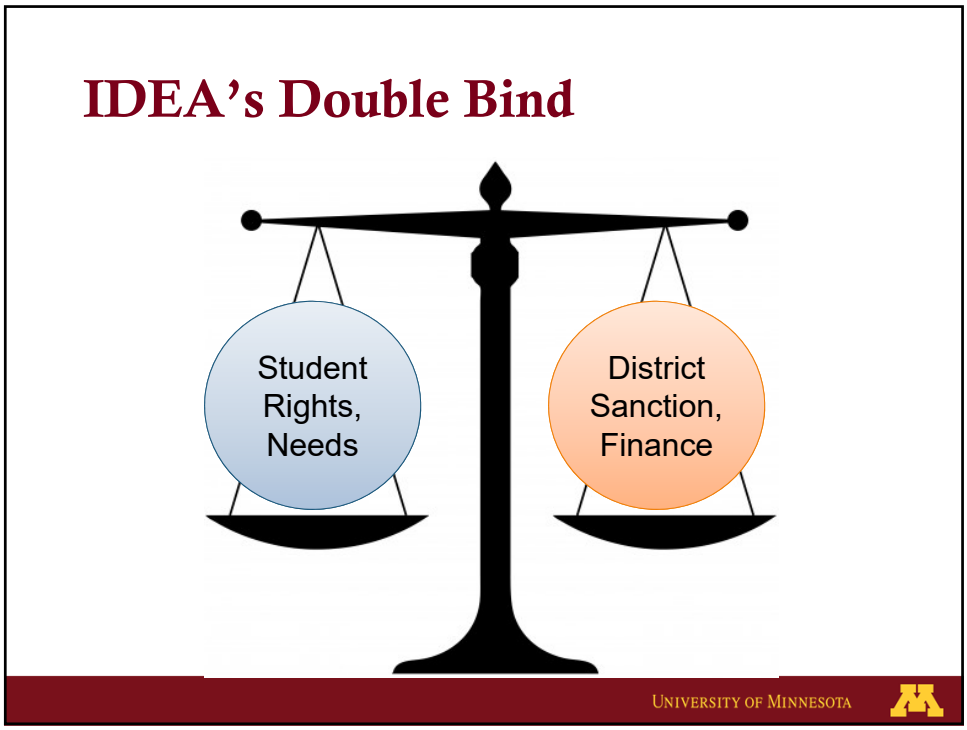
Double bind Defined

- a situation in which a person is confronted with two irreconcilable demands or a choice between two undesirable courses of action.
- a situation in which a person is given conflicting cues … such that to obey one cue is to disobey the other
- a psychological predicament in which a person receives from a single source conflicting messages that allow no appropriate response to be made

Source: Merriam Webster dictionary

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Coordinated Early Intervening

- Significant dispro per state criteria → 15% federal funds to CEIS
  - Regardless of cause of disproportionality
  - Unexpended funds are forfeited back to USDOE
- Cannot:
  - be used to reduce/redirect local funding,
  - affect allocations for students in private schools, or
  - be offset by Medicaid claims.

The Nuances of CEIS

- CEIS funding *can* be used for RTI/MTSS *but not universal tier* unless such services are "principally intended to address the needs of students who are struggling" (Knudsen, 2008b, p. 6)
- Can be used for P12 students, including those with disabilities

https://ideadata.org/sites/default/files/media/documents/2017-09/idc_ceis_chart.pdf

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What If Discriminations Is a Concern?

- OCR: Numerical data + **context**
- Numerical data are considered **insufficient** to determine discrimination, but are important for monitoring and evaluation of policy effects.
- Key concerns are **appropriateness** of formulation and **consistency** of implementation.

Key Considerations:

- Are assessment and intervention procedures based in reliable and valid practices?
- Are policies and procedures implemented consistently and fairly for all students?
- Are IDEA-eligible students subject to timely and individualized decisions?

Disproportionality & Child Find

- Efforts to reduce numerical disproportionality **cannot interfere with** state and LEA's obligations for **child find and zero reject**
- Discrimination in special education referrals and identification, including under-identification, can violate students' rights under IDEA, Section 504, and Title VI

Avoiding identification of eligible students to avoid/lift IDEA dispro sanction

↓

Discrimination & violation of IDEA

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How Has OCR Investigated Discrimination?

- Is the policy/practice facially neutral (i.e., not overtly discriminatory)?
- Does it have adverse impact on particular group(s) of students compared to others?
- Is it require to meet an important educational goal and is there no comparably effective alternative?
- Are reliable, valid, and nondiscriminatory general and special education policies and procedures in place?

When Discrimination Was Found

Required corrective action often included:

- Review/revise policies
- Disseminate and prep all personnel **annually**
- Expand screening and referral processes to incorporate **systematic, research-based** practices
- Ongoing **monitoring of disparate impact and effectiveness of practices** (universal screening, classroom intervention, pre-referral intervention, special education evaluation and placement)
- Identify causes of disparities by race, language, national origin, etc.
- **Annually evaluate effects** of efforts to reduce disparities

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